

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JAMEL NICHOLSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER EDWIN
DURAN, Tax No. 952700, POLICE OFFICER SAUL
DELACRUZ, Tax No. 956572, POLICE OFFICER
FLAGUMY VALCOURT, POLICE OFFICER GREGORY
VASQUEZ, POLICE OFFICER RONNIE RIVERA, Shield
No. 10655, SERGEANT DAVID GRIECO, SERGEANT
KRISTOPH LOPEZ, Shield No. 1960, and POLICE
OFFICERS JOHN DOES #s 1-4 (names and number of
whom are unknown at present),

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 3, 2022

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
POLICE OFFICER EDWIN DURAN, Tax No. 952700, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226
POLICE OFFICER SAUL DELACRUZ, Tax No. 956572, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226
POLICE OFFICER FLAGUMY VALCOURT, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226
POLICE OFFICER GREGORY VASQUEZ, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226
POLICE OFFICER RONNIE RIVERA, Shield No. 10655, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226
SERGEANT KRISTOPH LOPEZ, Shield No. 1960, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226
SERGEANT DAVID GRIECO, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JAMEL NICHOLSON,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER EDWIN
DURAN, Tax No. 952700, POLICE OFFICER SAUL
DELACRUZ, Tax No. 956572, POLICE OFFICER
FLAGUMY VALCOURT, POLICE OFFICER
GREGORY VASQUEZ, POLICE OFFICER RONNIE
RIVERA, Shield No. 10655, SERGEANT DAVID
GRIECO, SERGEANT KRISTOPH LOPEZ, Shield No.
1960, and POLICE OFFICERS JOHN DOES #s 1-4
(names and number of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff JAMEL NICHOLSON, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that he was, unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, and denied the right to due process/ the right to a fair trial, by the defendants for allegedly Trespassing into a privately owned apartment building where he was lawfully present. Plaintiff alleges that on May 3, 2019 at approximately 10:00 PM he was lawfully present on the second floor of the privately owned apartment building located at 3405 Foster Avenue, Brooklyn, New York, 11210 which is part of the Flatbush Gardens apartment complex when defendants unlawfully stopped, questioned, frisked, searched and falsely arrested/ imprisoned plaintiff. Defendants unlawfully transported plaintiff to the 67th Precinct whereat he was unlawfully searched, fingerprinted, photographed and detained in a holding cell for many hours. Plaintiff was eventually transported to Kings County Central Booking whereat the unlawful detention continued for many additional hours. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial when they initiated a criminal prosecution against plaintiff without probable cause by making false allegations

against plaintiff on the arrest paperwork they filled out related to plaintiff's arrest and falsifying evidence that was provided and communicated to the Kings County District Attorney's Office. Plaintiff was arraigned on May 4, 2019 at approximately 11:30 pm and charged with crimes he did not commit. All charges brought against plaintiff were dismissed and sealed in their entirety at arraignment on May 4, 2019. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff JAMEL NICHOLSON is a resident of the state of New York.

3. Defendant POLICE OFFICER EDWIN DURAN, Tax No. 952700, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER EDWIN DURAN, Tax No. 952700, was at all times relevant herein, assigned to the 67th Precinct.

5. Defendant POLICE OFFICER EDWIN DURAN, Tax No. 952700, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER SAUL DELACRUZ, Tax No. 956572, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER SAUL DELACRUZ, Tax No. 956572, is and was at all times relevant herein, assigned to the 67th Precinct.

8. Defendant POLICE OFFICER SAUL DELACRUZ, Tax No. 956572, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER FLAGUMY VALCOURT, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER FLAGUMY VALCOURT, is and was at all times relevant herein, assigned to the 67th Precinct.

11. Defendant POLICE OFFICER FLAGUMY VALCOURT, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER GREGORY VASQUEZ, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER GREGORY VASQUEZ, is and was at all times relevant herein, assigned to the 67th Precinct.

14. Defendant POLICE OFFICER GREGORY VASQUEZ, is being sued in his individual and official capacity.

15. Defendant POLICE OFFICER RONNIE RIVERA, Shield No. 10655, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER RONNIE RIVERA, Shield No. 10655, is and was at all times relevant herein, assigned to the 67th Precinct.

17. Defendant POLICE OFFICER RONNIE RIVERA, Shield No. 10655, is being sued in his individual and official capacity

18. SERGEANT DAVID GRIECO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. SERGEANT DAVID GRIECO, is and was at all times relevant herein, assigned to the 67th Precinct.

20. SERGEANT DAVID GRIECO, is being sued in his individual and official capacity.

21. Defendant SERGEANT KRISTOPH LOPEZ, Shield No. 1960, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant SERGEANT KRISTOPH LOPEZ, Shield No. 1960, is and was at all times relevant herein, assigned to the 67th Precinct.

23. Defendant SERGEANT KRISTOPH LOPEZ, Shield No. 1960, is being sued in his individual and official capacity

24. New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

25. Police Officers John Does #1-4 are being sued in their individual and official capacities.

26. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times

relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

27. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

28. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

30. On May 3, 2019 at approximately 10:00 PM plaintiff was lawfully present on the second floor of the privately owned apartment building located at 3405 Foster Avenue, Brooklyn, New York, 11210 which is part of the Flatbush Gardens apartment complex when defendants unlawfully stopped, questioned, frisked, searched and falsely arrested/ imprisoned plaintiff for allegedly Trespassing into the apartment building where plaintiff was lawfully visiting a friend.

31. On May 3, 2019 at approximately 10:00 PM plaintiff was visiting a friend and was lawfully present with friends in the hallway on the second floor of 3405 Foster Avenue, Brooklyn, New York when he was approached by defendants and unlawfully stopped, questioned, frisked, and searched without reasonable suspicion, probable cause, or legal justification.

32. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have an objective factual basis to suspect plaintiff violated the law.

33. At no time relevant herein did defendants ask plaintiff to voluntarily cooperate with them, as required by the New York City Police Department Patrol Guide Procedure Number 212-59.

34. At no time relevant herein after defendants approached plaintiff did defendants advise plaintiff that he was free to leave, as required by the New York City Police Department Patrol Guide Procedure Number 212-59.

35. Plaintiff was not free to leave when the officers approached him on May 3, 2019 at approximately 10:00 PM on the second floor of 3405 Foster Avenue.

36. The defendants ordered plaintiff to provide them with identification.

37. Plaintiff complied with the defendants and provided them with his identification.

38. Plaintiff advised defendants that he was lawfully in the building as a guest of a tenant in the building.

39. Defendants did not possess reasonable suspicion or probable cause to reasonably believe plaintiff was trespassing in the building or that he committed any other crime.

40. Defendants claim that they were not satisfied with plaintiff's explanation regarding why he was in the building but did not possess probable cause to arrest plaintiff for trespassing in the building or committing any other crime.

41. At no time relevant herein did defendants instruct plaintiff that he must leave the building or be subject to arrest for trespass, as required by the New York City Police Department Patrol Guide Procedure Number 212-59

42. Defendants unlawfully searched plaintiff without probable cause.

43. Defendants did not recover any illegal drugs, weapons, or contraband on plaintiff or from plaintiff's possession, custody or control pursuant to the unlawful frisk and search of plaintiff's person.

44. At no time relevant herein did plaintiff violate the law or behave in a manner that would have given defendants reasonable suspicion or probable cause to believe plaintiff violated the law, was violating the law or was about to violate the law.

45. Although plaintiff provided defendants with the information they requested, defendants unlawfully handcuffed and falsely arrested plaintiff for allegedly trespassing into the apartment building, without probable cause or legal justification to make the arrest of plaintiff.

46. Defendants transported plaintiff to the 67th Precinct against his will.

47. Defendants unlawfully searched, fingerprinted, photographed, and detained plaintiff in a holding cell for many hours at the 67th Precinct.

48. On May 4, 2019 plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued, and plaintiff was unlawfully detained in several large holding cells with many other prisoners in each cell.

49. Defendants falsely advised the Kings County District Attorney's Office that plaintiff was trespassing in the building and did not have authority to be there.

50. . Based upon the fabricated allegations made by the defendants, plaintiff was arraigned in Kings County Criminal Court on May 4, 2019 at approximately 11:30 PM and falsely charged with Criminal Trespass in the Second Degree (PL 140.15(1)), Criminal Trespass in the Third Degree (PL 140.10(A)), and Trespass (PL 140.05) without probable cause based upon the false allegations made against plaintiff by defendants.

51. . All criminal charges brought against plaintiff terminated in plaintiff's favor and were dismissed and sealed in their entirety at arraignment on or about May 4, 2019.

52. Plaintiff was released from custody at arraignment after he was unlawfully detained for approximately 25 ½ hours.

53. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, and defendants did not possess any objective facts which suggested that plaintiff committed a crime or violated the law in any manner.

54. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

55. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

56. In 2013 a Federal District Court Judge in the Southern District of New York found that the NYPD had an unconstitutional policy and practice of stopping, seizing and arresting individuals for allegedly trespassing into apartment buildings when the officers did not have a factual basis to believe the individuals they were stopping, and arresting were engaged in criminal activity. See Ligon v. City of New York, 2013 U.S. Dist. LEXIS 2871 (S.D.N.Y. Jan. 8, 2013).

57. The Court held that an individual's mere presence in a public space of an apartment building does not give police officers a legal basis to stop, question, frisk, and /or search the individual because there is nothing about an individual's mere presence in a public space of an apartment building that suggests an individual is committing a crime or violating the law any basis to believe the person is trespassing into the building or committing any other crime. Id.

58. The Court ordered the NYPD and its police officers to immediately stop engaging in unlawful stops, questionings and frisks and falsely arresting individuals for allegedly trespassing into an apartment building based solely upon the fact that the individual is

present in a public space located inside the apartment building, without an objective factual basis to establish reasonable suspicion or probable cause that a crime is afoot. Id.

59. The NYPD amended its written policies and training materials regarding when an NYPD officer can legally stop and seize individuals that police officers encounter while on patrol inside of apartment buildings so that the NYPD's written policies and practices were compliant with the Court's ruling in Ligon and the Constitution of the United States.

60. Although the NYPD amended its written policies and practices regarding stops, question and frisk, and arrests for alleged criminal trespass made by its officers, the NYPD is deliberately indifferent to the fact that its police officers continue to follow the NYPD's pre-2013 written policies and practices regarding this issue and does not take any action with its police officers to stop the unconstitutional conduct when police officers, such as defendants in this lawsuit, unlawfully stop, question, frisk, and arrest members of the public, such as plaintiff in this lawsuit, for allegedly trespassing into an apartment building, even when the officers' stated basis for making the stop and arrest was that the individual was present in a public space of a building, such as the allegations made by the defendants in this lawsuit

61. Upon information and belief, the NYPD has taken no action whatsoever to discipline or retrain the defendants in this lawsuit after they violated plaintiff's rights by stopping and arresting plaintiff because he was present in a public hallway of a private apartment building chatting with other individuals even though such behavior by plaintiff is not a crime and does not meet the legal threshold necessary for a police officer to stop, seize or arrest an individual for criminal trespass.

62. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

63. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public for allegedly committing the crime of Trespass because the individuals were present in a public space area of an apartment building.

64. In addition to violating plaintiff's Constitutional rights, the defendants blatantly violated the Court's standing Order in Ligon as well, and defendants stopped, questioned, frisked, searched, and falsely arrested/imprisoned plaintiff in total disregard of the Federal Judge's order for the NYPD and its police officers to immediately stop engaging in such unlawful and unconstitutional conduct.

65. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public for trespass when they are lawfully present in the public space of a privately owned apartment building and there is no factual basis to suspect the individual has committed a crime.

66. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

67. In Ligon, United States District Court Judge Shira A. Scheindlin held that, “[b]y 2011 city policymakers were on actual notice of a practice of unconstitutional trespass stops by city employees outside [privately owned apartment] buildings,” and that, “[a]s early as 1999, the NYPD Legal Bureau was aware that it was unlawful to stop someone [in a privately owned apartment building] simply for entering and exiting [the] building.” Ligon at 143.

68. The Court in Ligon further held that “despite being on actual notice that their policy of ‘stop and question first, develop reasonable suspicion later’ was unconstitutional, the NYPD failed to properly train officers, leading to more than 2,000 unlawful stops outside of TAP buildings in 2011 alone.” Id.

69. Although defendant City and the NYPD have since changed their written policies to comply with the Court’s rulings in Ligon, defendant City of New York and the NYPD continue to be deliberately indifferent to the fact that there is an unwritten policy and practice followed by NYPD police officers throughout the City wherein police officers continue to engage in an unlawful practice of stopping members of the public who are present in the public shared space of a privately owned apartment even if the officers don’t possess any evidence that indicates the individual is engaged in criminal activity.

70. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff’s injuries because the officers knew there would not be any consequences for violating plaintiff’s rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

71. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION**Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights**

72. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION**False Arrest and False Imprisonment**

74. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

79. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

81. The conduct of defendants in stopping, questioning, frisking and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

85. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

87. Defendants lacked probable cause to search plaintiff.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

91. Plaintiff repeats and realleges paragraphs 1 through 90 as if fully set forth herein.

92. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

93. Defendants commenced and continued a criminal proceeding against plaintiff.

94. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

95. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

96. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Due Process/ Right to a Fair Trial

98. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 97 with the same force and effect as if fully set forth herein.

99. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

100. Defendants filled out false and misleading police reports and a summons and forwarded them to the Kings County Criminal Court.

101. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

102. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

104. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

106. Defendants failed to intervene to prevent the unlawful conduct described herein.

107. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unconstitutionally Stopping, Questioning, Frisking, Searching, and Arresting Individuals Trespassing into Apartment Buildings in violation of the Fourth and Fourteenth Amendments to the United States Constitution

109. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk, search, and falsely arrest individuals for trespass in privately owned apartment buildings located in New York City without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

111. A Federal Court has already found that for many years, including the time period of 1999 through 2011, defendant City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally illegally stop, question, frisk, search, and falsely arrest individuals for trespass in privately owned apartment buildings located in New York City without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Ligon v. City of New York, 2013 U.S. Dist. LEXIS 2871 (S.D.N.Y. Jan. 8, 2013).

112. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally illegally stop, question, frisk, search, and falsely arrest individuals for trespass in privately owned apartment buildings located in New York City without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these stops and searches, and arrests without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

113. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Fourth Amendment to the Constitution of the United States.

114. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train,

and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless stops, seizures, questions, frisks, searches, and arrests, for trespass into a privately owned apartment building.

115. The City of New York has acted with deliberate indifference to the Fourth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

116. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

117. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jamel Nicholson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 3, 2022

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 3, 2022

David Hazan

DAVID M. HAZAN